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October Term 1998

JAY B. MARCUS, MARCUS FOR CONGRESS, THE NATURAL LAW PARTY OF IOWA, EDWARD T. RUSK OF THE WORKING CLASS PARTY, EDWARD T. RUSK FOR CONGRESS, MICHAEL CUDDEHE, MICHAEL DIMICK, ROGERS BADGETT, PETER LAMOUREUX, FRED GRATZON, and SUSAN MARCUS,
Petitioners,
v.

IOWA PUBLIC TELEVISION, a state agency, and DANIEL K. MILLER in his official capacity,
Respondents.

Petition For A Writ Of Certiorari To The United States Court of Appeals For The Eighth Circuit

REPLY TO BRIEF IN OPPOSITION TO PETITION FOR WRIT OF CERTIORARI

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ARGUMENT

This Case Presents Important Questions of Federal Law Fundamentally Different from those Presented in Arkansas Educational Commission v. Forbes.

The questions presented by the Petition for a Writ of Certiorari (hereinafter, the "Petition") are fundamentally important, involving the standards for the participation of minority voices in government-sponsored political debates. While the Court recently decided Arkansas Educational Television Commission v. Ralph P. Forbes, 118 S.Ct 1633 (1998), this case raises different issues, and the Court's review would not simply be a reexamination of Forbes.

Respondent urges the Court *not* to review the facts in this case, stating that "the courts need not, and must not, become involved in attempting to supervise the editorial decisions of broadcast journalists" (Respondents' Brief in Opposition, p. 7-8), citing Forbes at 1640. This argument minimizes the distinction between the editorial decisions of state-owned broadcasters in general, and their decisions about which candidates may participate in political debates. In Forbes, the Court states first that "public broadcasting as a general matter does not lend itself to scrutiny under the forum doctrine," Id. at 1639-40, but then concludes, that candidate debates present a "narrow exception to the rule," in part because of the "exceptional significance" of debates in the electoral process, Id. at 1640.

In advancing their theme that no judicial analysis of

the facts of this case is necessary, Respondents' brief, notably, is devoid of virtually any analysis of the underlying facts that show how this case differs from Forbes. Instead, Respondents recite special verdict responses and conclusions of the District Court that are *not* inconsistent with the Constitutional challenges raised by Petitioners. The District Court found (Pet. Apdx. B-29, 30) that the candidate forum in question was a debate (special verdict answer 1); that IPTV had a predetermined policy in deciding whom to invite to debates (special verdict answer 3, which is consistent with Petitioners' claim that no candidate-by-candidate analysis was undertaken); that none of the Petitioner candidates was newsworthy (special verdict answer 5, which Petitioner claims is an impermissibly subjective and content-based standard); and that the candidates were not excluded because of disagreement with their political opinions (special verdict answer 6). Even this last finding does not mean that the grounds on which Petitioners were excluded was reasonable and not an impermissibly subjective analysis based on the content of the Petitioners' ideas.

Respondents' principal argument, with which Respondents' brief opens (Introduction) and closes (the next to last paragraph, p. 8), appears to be that Petitioner stated to the Eighth Circuit Court of Appeals that this case is indistinguishable from Forbes.

Respondent's argument is superficial. The eighth circuit's decision in Forbes was premised on that court's holding that the question of whether a candidate is "politically

viable" (i.e., had sufficient public support) is [too] subjective "for the exercise of governmental power consistent with the First Amendment." Forbes v. Arkansas Educational Television, 93 F.3d 497, 505 (8th Cir. 1996). Petitioners have consistently argued in the eighth circuit and here that the "newsworthiness" standard used by Iowa Public Television ("IPTV"), while different from the standard applied in Forbes, is also too subjective. However the "indistinguishability" of the two cases ends there.

First, on review, this Court did not find fault with the eighth circuit's decision that a *subjective* standard is impermissible; rather, the Court impliedly endorsed the eighth circuit's condemnation of subjective standards for candidate selection since the Court based its decision to reverse on a finding that Arkansas Educational Television made a reasonable decision and that "Forbes own *objective* lack of support...was the criterion." Id. at 1644. (Emphasis added).

This case presents, as the first question not settled by Forbes, whether newsworthiness is an impermissibly subjective standard. In this regard, IPTV has admitted that a determination of newsworthiness is "extraordinarily subjective," Trial Ex. 20, Miller Depo. at 22, lines 5-18, and since a decision about whether a candidate is newsworthy depends, in no small measure, on an analysis of the candidate's ideas, the fundamentally subjective nature of the decision is apparent.

This case, then, presents a second important question, not present in Forbes, of whether the "newsworthiness"

standard is impermissibly content or viewpoint-based, since the district Court defined the term "newsworthy," using an ordinary dictionary definition, to mean whether the candidates or their material were "sufficiently interesting" to the public. Jury Instruction No. 15, Pet. Apdx. B-36. Respondents' brief never denies that a determination of newsworthiness involves an analysis of a candidate's ideas, and the testimony from IPTV"s own witnesses shows the content-based nature of the analysis.

IPTV's Professor Mack testified that newsworthiness is evaluated based on whether the interviewee (candidate) has "information to share with viewers that will inform them...help them make a better decision...enable them to be better taxpayers, better citizens..." Pet. at 7-8. In addition, IPTV's Mike Newell, who excluded the Petitioner candidates on the basis of a lack of newsworthiness, testified that "newsworthiness would indicate...that we have a tendency to make news at the Iowa Press table, or . . . to flesh out what already is in the news, or to add to what is generally known to our viewer- ship." Trial Ex. 19, Newell Depo. at 16-17. IPTV evaluated the candidates based on the ideas expected to be presented by them, and whether these ideas would "add to what is known to the viewership" or "flesh out what is in the news."

The Marcus case, unlike Forbes, stands for the proposition that minority candidates can be prevented from participation in debates based on an admittedly subjective standard that analyzes whether the candidate's ideas are

sufficiently interesting. There is no plausible argument that this was the decision of the Court in Forbes.

Because this case, unlike Forbes, involves an analysis of "newsworthiness," the real basis on which most journalists will make their decisions, this case will provide more guidance to the lower courts than Forbes on this important issue. While the District Court held that "it is profoundly important that the defendant network [IPTV] and its news editors be allowed to exercise independent journalistic and editorial judgments based on newsworthiness," Marcus v. Iowa Public Television, No. 4-96-CV-80690, 1996 WL 764143 (S.D. Iowa, October 9, 1996) (Pet. Apdx. B-33), Petitioners contend that it is even more profoundly important that minority voices not be silenced because of the government's "extraordinarily subjective" determination that a candidate is not "sufficiently interesting."

The Petition should be granted.

Respectfully submitted,

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